

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1070 of 2010

Petitioner :- M/S Baba Ice And Cold Storage Pvt. Ltd.

Respondent :- Ram Chandar, Tehsildar Kirawali Agra

Petitioner Counsel :- K.K. Dwivedi

Hon'ble Vikram Nath,J.

Supplementary affidavit filed today is taken on record.

It is alleged that the order dated 4.2.2009 passed by this court has been violated. From a perusal of the petition, a prima facie case is made out.

Issue notice to opposite party fixing 28th April, 2010.

The Counter affidavit may be filed within the aforesaid period or else charges may be framed after summoning the noticee.

However, one more opportunity is granted to the opposite party to comply with the order within a month. On the said date opposite party shall remain present before this Court.

The office may send a copy of this order along with the notice.

Order Date :- 19.3.2010

SS

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1070 of 2010

Petitioner :- M/S Baba Ice And Cold Storage Pvt. Ltd.

Respondent :- Ram Chandar, Tehsildar Kirawali Agra

Petitioner Counsel :- K.K. Dwivedi

Hon'ble Vikram Nath,J.

Pursuant to the order dated 19.3.2010, the opposite party Ram Chand, Tahsildar, Tahsil Kirawali, District Agra is present.

Sri D.N. Mishra, learned Standing Counsel has filed a short counter affidavit on his behalf alongwith an application seeking exemption from personal appearance and for discharge of contempt notice.

There were certain recoveries against the applicant of the electricity department. When the recovery was being pressed the petitioner approached this Court by way of Writ Petition No.6212 of 2009. This Court disposed of the writ petition by order dated 4.2.2009 which runs as follows:

"Heard learned counsel appearing for the petitioner, learned Standing Counsel appearing for the respondent no.1 and 4 and Subhash Goasai, Advocate holding brief of Sri Rajesh Tripathi, learned counsel appearing for the respondent-Corporation

It is a case of electricity dues. The petitioner contended that due to some personal difficulty he could not deposit the bill. However, petitioner states that he is prepared to pay the bill amount, provided he is extended facility to deposit the same in easy instalments.

Respondents, represented by their counsel, have no objection to the above in view of Clause 6.14 of the U.P. Electricity Supply Code, 2005.

In view of the above, as a special case, we direct that the respondents, their agents, servants, employees, officers etc. shall not proceed to recover the amount in question or proceed with attachment/auction sale etc. (subject matter of the writ petition) provided the petitioner makes deposits as follows:

1. Petitioner shall make deposit of the claimed amount in four monthly instalments. The first instalment will be deposited within

one month from today, which will be 40% of the amount demanded and balance shall be paid in three equal instalments.

2. In case, petitioner makes payments as per schedule prescribed above and comply with all the conditions contained herein, no amount as collection charges shall be recovered.

3. But in case petitioner commits default of any of the above conditions, this order shall stand vacated automatically on the date of default itself without further reference to the Court and the petitioner will become liable to pay collection charges also.

4. If the petitioner feels aggrieved against the calculations given in the account statement, he may seek his remedy, without being prejudiced by this order in any manner, as may be available in law.

5. In case on account of self same bill earlier writ petition has been proceeded or auction has already taken place, the order, which has been passed hereunder, will not be operative.

On deposit of entire bill amount, the electricity connection will be restored.

Writ petition is disposed of finally on the above directions.

No order is passed as to costs."

Pursuant to the said order the applicant made deposits as follows-

Rs.200000.00 Receipt No.32/000658 dated 28.02.09

Rs.100000.00 Receipt No.37/000847 dated 31.03.09

Rs.150000.00 Receipt No.32/06019 dated 04.05.09

Further the applicant requested the electricity department to permanently disconnect his connection and adjust the security deposit of Rs.1,37,500/- which was lying in deposit since 2003. The Electricity Department vide letter dated 20.3.2009 wrote to the Additional Collector (Finance & Revenue) that the applicant has already deposited Rs.2,00,000/- on 28.2.2009 and the security amount of Rs.1,37,500/- has been adjusted as the applicant has prayed for permanent disconnection. It was further informed to the Additional Collector that a sum of Rs.2,97,799/- was in balance. Subsequently the electricity department vide letter dated 5.6.2009 wrote to the Additional Collector (Finance & Revenue),

Agra that the entire amount due against the applicant had since been deposited which included the deposits of Rs.2,00,000/-, 1,00,000/- and 1,50,000/- made on 28.2.2009, 31.3.2009 and 4.5.2009 and adjustment of the security amount of Rs.1,37,500/- deposited in the year 2003. It further informed that the excess amount has since been adjusted in the interest. Accordingly it requested the Additional Collector to return the demand notice no.1714 dated 12.1.2009. According to the applicant 8 months thereafter on 6.2.2010 the opposite party arrested the applicant and lodged him in Tahsil lock up, which fact is duly entered in the Tahsil Lock up Register. Thereafter despite the applicant's and his family members repeatedly requesting that the entire amount of recovery has since been deposited, the opposite party forced the applicant and his family members to deposit Rs.63,335/- as collection charges and only thereafter released him. It was in these circumstances that the present contempt application was filed alleging clear disobedience of the directions of the writ court where entire amount had been deposited in terms of the order of the writ court.

In the short counter affidavit filed today the defence taken by the opposite party is that the applicant was required to deposit 40% of the amount demanded within one month and the balance amount in three equal instalments. The applicant did not deposit 40% of the demanded amount which would be approximately Rs.2,50,000/- and odd and had only deposited Rs.2,00,000/- within one month as such committed default of the conditions imposed by this court and therefore, the relief granted would stand automatically vacated and as such the recovery amount became relalisable. In these circumstances the amount of recovery charges became recoverable from the applicant which has been duly recovered and therefore there is no disobedience of the directions of the writ court. In this respect it has also been stated by the opposite party that upon receipt of the recall request from the Electricity Department, the letter was written by him to the Additional Collector (Finance & Revenue) on 29.6.2009 seeking further directions as to whether the recovery charges could be recovered or not. According to the opposite party Additional Collector (Finance & Revenue) made an endorsement on another letter written by the opposite party regarding return of the demand notice on 2.7.2009 to the effect that the balance amount/collection charges may be recovered in accordance with the rules. Thereafter the opposite party is said to have passed an order dated 17.7.2009 directing the Collection Amin of the area to recover the balance amount/collection charges. In these circumstances justification has been sought to be made

with regard to arrest and recovery of the collection charges.

The Court is not satisfied with the explanation tendered by the opposite party for the following reasons. Firstly, the applicant had complied with the directions of the writ court as the applicant having requested for permanent disconnection after adjustment of the security amount, alongwith the first instalment the deposit made by the applicant stood at Rs.3,37,500/- as the first instalment. Thereafter the Electricity Department itself had recalled the demand notice giving details of the deposits made by the applicant alongwith the adjustment of the security deposit. Secondly, once the demand notice had been recalled by the Executive Engineer of the Electricity Department whether or not the opposite party could have recovered the collection charges would also be a question to be considered. In the present case as the entire amount had been deposited in compliance of the directions of the writ court and subject to such deposit had granted further relief of waiving the collection charges upon full deposit being made within four months with the 40% deposited as the first instalment, and the entire amount having been deposited within four months, there could be no justification for demanding any recovery charges.

There is one more aspect of the matter. The amount had been directly deposited with the electricity department. No part of the amount had been recovered by the collection department of the Tehsil. Collection charges would become leviable only where the amount has been recovered by the tehsil authorities and not otherwise.

Further the manner in which the recovery charges had been recovered after 8 months of the recall of the demand notice without giving any further notice to the applicant at any stage, as is apparent from the counter affidavit filed today, the conduct of the opposite party appears to be clearly malafide and in the teeth of the directions of the writ Court.

As a plea has been taken by the opposite party that he had carried out the recovery pursuant to the directions issued by the Additional Collector (Finance & Revenue) pursuant to his order dated 10.7.2009, the court feels that the said officer may also file his reply in response to this and in the light of the observations passed today. It has been informed that Udai Ram was the Additional Collector (Finance & Revenue) who had passed the order on 10.7.2009. He is presently posted as Secretary, Agra Development Authority, Agra. He may file his reply within three weeks and

shall remain present on the next date alongwith his reply.

List on 25.5.2010. On the said date the opposite party as also Udai Ram shall remain present.

A copy of this order may be provided to Sri D.N. Mishra, learned Standing Counsel free of costs, within 48 hours for necessary compliance.

Order date: 28.4.2010

RPS

Court No. - 10

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Petitioner :- M/S Baba Ice And Cold Storage Pvt. Ltd.

Respondent :- Ram Chandar, Tehsildar Kirawali Agra

Petitioner Counsel :- K.K. Dwivedi

Respondent Counsel :- S.C.

Hon'ble Vikram Nath,J.

Pursuant to the order dated 28.4.2010, the opposite party Ram Chandra as also Udai Ram the then Additional Collector (Finance and Revenue), Agra are present. Sri Atul Mehra, Advocate has put in appearance on behalf of Udai Ram and has filed an affidavit on his behalf. Learned counsel for the applicant prays for and is allowed two weeks time to file reply to the counter affidavit filed today and also to the short counter affidavit of Ram Chandra filed on previous date.

List this case on 13.7.2010. On the said date the opposite party as also Udai Ram the then Additional Collector (finance & Revenue) shall remain present.

Order Date :- 25.5.2010

RPS

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1070 of 2010

Petitioner :- M/S Baba Ice And Cold Storage Pvt. Ltd.

Respondent :- Ram Chandar, Tehsildar Kirawali Agra

Petitioner Counsel :- K.K. Dwivedi

Respondent Counsel :- Atul Mehra, S.C.

Hon'ble Vikram Nath, J.

Learned counsel for the applicant has filed two rejoinder affidavits which are taken on record. Sri Rahul Agrawal, Advocate has filed his Vakalatnama with an endorsement that Sri Shashi Nandan, Senior Advocate will also appear on behalf of Udai Ram, Secretary, Agra Development Authority, the then Additional Collector (Finance and Revenue), Agra.

Heard learned counsel for the applicant, Sri Shashi Nandan, learned Senior Advocate assisted by Sri Rahul Agrawal appearing for Udai Ram, the then Additional Collector (Finance and Revenue), Agra and Sri M.C. Chaturvedi, learned Chief Standing Counsel for the opposite party no.1.

One of the question which arises in this case is as to whether after the recall of the recovery certificate by the Electricity Department on the ground that the entire dues had been deposited with the department, whether the State Agency could proceed to recover the collection charges from the defaulter. Further if it could proceed further for realising the recovery charges, then what would be the procedure to be adopted by the State Agency. Learned counsel for the opposite party prayed for some time to examine this aspect of the matter and place any relevant material on record by means of an affidavit.

List on 4.8.2010. The opposite party as also Udai Ram the then Additional Collector (Finance & Revenue), Agra who are present today shall remain present on the next date.

Order Date :- 13.7.2010

RPS

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Respondent :- Ram Chandar, Tehsildar Kirawali Agra

Petitioner Counsel :- K.K. Dwivedi

Respondent Counsel :- Atul Mehra, Rahul Agrawal, S.C.

Hon'ble Vikram Nath, J.

List on 16.8.2010. The opposite party as also Udai Ram, the then Additional Collector (Finance and Revenue), Agra shall remain present on the said date.

Order Date :- 4.8.2010

RPS

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1070 of 2010

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Respondent :- Ram Chandar, Tehsildar Kirawali Agra

Petitioner Counsel :- K.K. Dwivedi

Respondent Counsel :- Atul Mehra, Rahul Agrawal, S.C.

Hon'ble Shashi Kant Gupta, J.

Pursuant to the order dated 4.8.2010, the opposite parties Ram Chand, Tahsildar, Tahsil Kirawali, District Agra and Mr. Udai Ram, the then Additional Collector (Finance and Revenue), Agra are present in the Court.

Heard learned counsel for the parties.

Learned counsel for the applicant submits that in the order dated 6.2.2010 passed by this court in Civil Misc. Writ Petition NO. 6212 of 2009, by means of direction no. 2, this court had very clearly directed the opposite parties as follows:

"2. In case, petitioner makes payments as per schedule prescribed above and comply with all the conditions contained therein, no amount as collection charges shall be recovered."

Learned counsel for the applicant submits that since the applicant, in compliance of the aforesaid directions, has deposited the entire amount due against him towards electricity charges, the opposite parties could not have recovered the collection charges of Rs. 63,335/- and the said amount is liable to be refunded to him.

Mr. Shashi Nandan, Senior Advocate appearing on behalf of the opposite party admits that the aforesaid amount has inadvertently been recovered by the opposite party and there was no intention at all on the part of the opposite parties to disobey the order of this court and they undertake that the said amount of Rs. 63,335/- shall be refunded to the applicant within 15 days from today.

In view of the aforesaid, the opposite parties are granted 15 days time to enable them to refund the aforesaid amount of Rs. 63,335/-, which is admitted to have been inadvertently recovered from the applicant towards collection charges, to the applicant by way of bank draft or Cheque on or before the date fixed and an affidavit to that effect be filed by the next date. If the amount is paid before the next date fixed, the opposite party need not to appear in person on the next date. However, it is made clear that in case the order is not complied with by the next date fixed and an affidavit of compliance is not filed, the opposite parties shall remain present before this Court for framing of charges.

List this matter on 31.8.2010.

Order Date :- 16.8.2010

MLK

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Respondent :- Ram Chandar, Tehsildar Kirawali Agra

Petitioner Counsel :- K.K. Dwivedi

Respondent Counsel :- Atul Mehra, Rahul Agrawal, S.C.

Hon'ble Shashi Kant Gupta, J.

Heard learned counsel for the parties.

Pursuant to the earlier order of this Court an affidavit of compliance has been filed on behalf of the opposite party which is taken on record.

Referring to para 7 of the afore mentioned affidavit, learned counsel for the opposite party submitted that the orders of this court have been fully complied with by making payment of the amount of Rs. 63,335- through Cheque dated 27.8.2010 in favour of the applicant, as mentioned in the said paragraph, and now there remains no dispute between the parties to be decided. The correctness of this statement has not been disputed by the learned counsel for the applicant.

In view of the above, no further consideration is required in this contempt application. Notice, if any, already issued to opposite party, stands discharged. The contempt application is consigned to record.

Order Date :- 31.8.2010

MLK